

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CHARLES SATTERWHITE,

Plaintiff,

-against-

POLICE OFFICER CHRISTOPHER KELLEY, Shield  
6065, POLICE OFFICER PETER COLOMBINI, Shield  
No. 3403, POLICE OFFICER ROMANDO JULIEN,  
Shield No. 08171, and SERGEANT EREK POWERS,  
Shield No. 5297,

Defendants.

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**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
July 3, 2017

Yours, etc.

\_\_\_\_\_  
/s/  
JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: POLICE OFFICER CHRISTOPHER KELLEY, Shield 6065, 81<sup>st</sup> Precinct, 30 Ralph Ave, Brooklyn, NY 11221  
POLICE OFFICER PETER COLOMBINI, Shield No. 3403, 81<sup>st</sup> Precinct, 30 Ralph Ave, Brooklyn, NY 11221  
POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, 81<sup>st</sup> Precinct, 30 Ralph Ave, Brooklyn, NY 11221  
SERGEANT EREK POWERS, Shield No. 5297, 81<sup>st</sup> Precinct, 30 Ralph Ave, Brooklyn, NY 11221

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Defendants.

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Plaintiff CHARLES SATTERWHITE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. On July 5, 2014, at approximately 3:00 p.m. plaintiff Charles Satterwhite was lawfully present inside of his friend's apartment located at 841 Gates Avenue, Apt. 1D, Brooklyn, New York. Thereafter, the defendant police officers unlawfully handcuffed plaintiff and subjected him to a false arrest and false imprisonment. Further, the defendant police officers plaintiff his Fifth and Fourteenth Amendment rights to due process and the right to a fair trial. Plaintiff was also subjected to malicious prosecution by the defendant police officers. All criminal charges were dismissed in their entirety on or about January 30, 2015. The defendant police officers that did not personally violate plaintiff's Constitutional Rights, but witnessed their fellow officers engage in unlawful activity and violate plaintiff's rights under the United States Constitution and failed to stop their fellow officers from continuing to engage in such unlawful behavior are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, seized, confined, falsely arrested and falsely imprisoned, and denied plaintiff the right to due process and the right to a fair trial, and malicious prosecution, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

## **PARTIES**

2. Plaintiff CHARLES SATTERWHITE is a resident of the state of New York.

3. POLICE OFFICER CHRISTOPHER KELLEY, Shield 6065, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CHRISTOPHER KELLEY, Shield 6065 is and was at all times relevant herein, assigned to the 81<sup>st</sup> Precinct.

5. POLICE OFFICER CHRISTOPHER KELLEY, Shield 6065, is being sued in his individual and official capacity.

6. POLICE OFFICER PETER COLOMBINI, Shield No. 3403, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER PETER COLOMBINI, Shield No. 3403, is and was at all times relevant herein, assigned to the 81<sup>st</sup> Precinct.

8. POLICE OFFICER PETER COLOMBINI, Shield No. 3403 is being sued in his individual and official capacity.

9. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, is and was at all times relevant herein, assigned to the 81<sup>st</sup> Precinct.

11. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171 is being sued in her individual and official capacity.

12. SERGEANT EREK POWERS, Shield No. 5297, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT EREK POWERS, Shield No. 5297, is and was at all times relevant herein, assigned to the 81<sup>st</sup> Precinct.

14. SERGEANT EREK POWERS, Shield No. 5297 is being sued in his individual and official capacity.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

19. On July 5, 2014, at approximately 3:00 p.m., plaintiff was lawfully inside of his friend's apartment located at 841 Gates Avenue, Apt. 1D, Brooklyn, New York.

20. On July 5, 2014, at approximately 3:00 pm., the defendant police officers unlawfully entered 841 Gates Avenue, Apt. 1D, Brooklyn, New York without reasonable suspicion or probable cause.

21. Upon unlawfully entering the apartment, the defendant police officers handcuffed plaintiff, unlawfully seized, unlawfully frisked and searched, and placed plaintiff under arrest, without probable cause or any legal justification.

22. At no time did the defendant police officers recover any illegal substance, contraband, weapons, or drugs from plaintiff's dominion, possession, custody, or control

23. Plaintiff was not a target or a subject of any search warrant and/or any investigation conducted of the premises by the defendant police officers.

24. The defendant police officers falsely arrested plaintiff without probable cause or any legal justification.

25. At no time did the police officers find drugs, weapons or illegal contraband in the possession, custody or control of plaintiff, nor did they have any reason to believe claimant committed a crime.

26. Regardless, the defendant police officers transported plaintiff to the 81<sup>st</sup> precinct against his will.

27. While at the precinct, plaintiff was fingerprinted, photographed, and put into a holding cell.

28. On or about July 6, 2014, plaintiff was transported to Brooklyn Central Booking.

29. On July 6, 2014, at approximately 3:00 p.m., after being in custody for approximately 24 hours, plaintiff was arraigned in Brooklyn Criminal Court.

30. A criminal prosecution was initiated against him by the defendant police officers, without probable cause, after defendants provided, false and fabricated evidence and information to the Kings County District Attorney's Office.

31. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

32. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

33. At arraignment plaintiff was wrongfully and unlawfully charged with Criminal Possession of Weapon.

34. At arraignment the Judge set bail and plaintiff was unable to post bail and therefore was remanded to the custody of the Department of Correction.

35. Plaintiff was transported to Riker's Island where he was held until July 12, 2014 when he was released from custody.

36. Thereafter, plaintiff had to appear in Court on several occasions before all charges against him were dismissed on January 30, 2015.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful and unconstitutional actions of their fellow police officers.

38. The unjustifiable frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of the right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

## **FIRST CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully frisked, unlawfully searched, unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Malicious Prosecution**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution and New York State law.

47. Defendants commenced and continued a criminal proceeding against plaintiff.

48. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

49. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

50. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION**

##### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

##### **to Due Process and Denial of the Right to Fair Trial**

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the King's County District Attorney's Office.

55. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the King's County District Attorney's Office.

56. Defendants signed false and misleading criminal court complaint's and forwarded them to prosecutors in the King's County District Attorney's Office.

57. In withholding/creating false evidence against plaintiff Charles Satterwhite, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.



58. As a result of the foregoing, plaintiff Charles Satterwhite sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

### **FIFTH CAUSE OF ACTION**

#### **Failure to Intervene**

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

61. Defendants failed to intervene to prevent the unlawful conduct described herein.

62. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

#### **JURY DEMAND**

63. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Charles Satterwhite demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
July 3, 2017

By: /s/  
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**STUART E. JACOBS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
July 3, 2017

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/s/  
STUART E. JACOBS